

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/29/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0005201

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK:

PLAINTIFF: KOFI OPONG MENSAH

vs.

DEFENDANT: DYLAN THOMAS
HACKETT

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Plaintiff Kofi Opong-Mensah's ("Plaintiff") Motion for Summary Judgment, or in the alternative, Summary Adjudication is DENIED.

REQUESTS FOR JUDICIAL NOTICE

Plaintiff's Requests for Judicial Notice Nos. 1-3 are GRANTED. (Evid. Code, § 452, subds. (d), (g), (h).) As to Request No. 4, the Request is DENIED.

OBJECTIONS TO EVIDENCE

The Court need only rule on those objections to evidence that it deems material to its disposition of the motion. (See Code Civ. Proc., § 437c(q).)

BACKGROUND

This is an action by Plaintiff against his former attorney of record. The claims asserted by Plaintiff arise out of Defendants' representation of Plaintiff in the underlying employment action against Plaintiff's former employer. (*Kofi Opong-Mensah v. Marin Community College District*, Marin County Superior Court Case No. CIV1903799.) Plaintiff's Second Amended Complaint ("SAC") alleges causes of action against Defendants for breach of contract, common counts, legal malpractice, breach of fiduciary duty, intentional infliction of emotional distress and fraud. Plaintiff alleges that Defendants' representation fell below the standard of care and caused him harm.

LEGAL STANDARD

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims of damages, or one or more issues of duty. (Code Civ. Proc., § 437c(f).) A summary adjudication motion is subject to the same rules and procedures as a summary judgment motion. (*Lomes v. Hartford Financial Service Group, Inc.* (2001) 88 Cal.App.4th 127, 131.)

A plaintiff moving for summary judgment must prove each element of the cause of action. (*Aguilar v. Atl. Richfield Co.*, *supra*, 25 Cal.4th at p. 853.) Once plaintiff has done so, the burden shifts to defendant to make its own prima facie showing of the existence of a triable issue of material fact. (*Id.*, at p. 850.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (*Avivi v. Centro Medico Urgente Med. Ctr.* (2008) 159 Cal.App.4th 463, 467, as modified (Jan. 24, 2008); Code Civ. Proc., §437c(c).) Any evidentiary doubts are resolved in favor of the opposing party. (*City of Santa Cruz v. Pacific Gas & Elec. Co.* (2000) 82 Cal.App.4th 1167, 1176.)

DISCUSSION

Deficiencies in Separate Statement

California Rules of Court rule 3.1350, subdivision (d)(3) provides that any Separate Statement in support of a Motion for Summary Judgment must “be in the two-column format specified in (h). The statement must state in numerical sequence the undisputed material facts in the first column followed by the evidence that establishes those undisputed facts in that same column. Citation to **the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers.**” (Emphasis added.)

Plaintiff fails to include the page and line numbers for all evidence cited. In addition, the Separate Statement frequently cites to Plaintiff’s own SAC as the “evidence” supporting specific facts.

The Memorandum of Points and Authorities does not lend clarity to this deficit. The only cause of action specifically addressed therein is the breach of contract cause of action. That section merely states as “demonstrated” in Plaintiff’s Separate Statement, each element of the

causes of action in the complaint is proven “by the specific facts as contained in the declarations, in defendant’s admissions and other discovery responses....” (Memo P & A p. 8:12-19. The Court notes page 8 is labeled as page 32.)

“The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute. To that end, the rules dictating the content and format for separate statements submitted by moving and responding parties permit trial courts to expeditiously review complex motions for summary judgment to determine quickly and efficiently whether material facts are disputed.” (*Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 72 (internal citations omitted).) “That goal is defeated where, as here, the trial court is forced to wade through stacks of documents,... in an effort to cull through the arguments and determine what evidence is admitted and what remains at issue.” (*Ibid.*)

“The burdens imposed upon the trial court will be eased considerably if the court insists, as it should, on strict compliance with the required separate statement, because the court's ability to focus on and articulate the evidentiary basis for its ruling will be found in the separate statement. (*North Coast Business Park v. Nielsen Construction Co.* (1993) 17 Cal.App.4th 22, 31 (internal citations omitted).) “That the fact *could have been found* in the filed documents is of no value.” (*Id.*)

Pro per litigants are held to the same standard as an attorney. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; see also *Keitel v. Heubel* (2002) 103 Cal.App.4th 324, 334–335.) Over three decades ago, our high court explained that “[a] doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 985.)

Here, the Court finds Plaintiff has not met his burden on Summary Judgment, due to his failure to properly cite evidentiary support for his “Undisputed Material Facts.” Without such support he has failed to meet his burden of proving each element of each cause of action. The Court declines to go through the 1406 pages of Evidence filed in support of his Motion and perform this work for him.

For these reasons, the Motion for Summary Judgment, or in the alternative Summary Adjudication, is DENIED.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/29/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0005730

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK:

PLAINTIFF: JESSICA JOHL

vs.

DEFENDANT: LUHRS PROPERTY
MANAGEMENT, INC., A CALIFORNIA
CORPORATION, ET AL

NATURE OF PROCEEDINGS: MOTION – COMPEL DEPOSITIONS

RULING

On June 23, 2026, Plaintiff filed an ex parte application to compel deposition testimony and for monetary sanctions, or in the alternative, for an order shortening time to hear these motions. The Court advanced the hearing date to July 29, 2026, with the expectation that depositions would occur prior to then. Neither party has requested that this matter be taken off calendar. No subsequent pleadings were filed addressing the depositions.

Appearances required.

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The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHnzEGafG.1>

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